

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X

DONALD ALEXANDRE and MICHELLE S.
CAMPBELL,

Plaintiffs,

Plaintiff Designates
New York County as the
place of trial

-against-

Index No.:
SUMMONS

POLICE OFFICER ERIC C. MARTINEZ,
THE CITY OF NEW YORK and
NEW YORK CITY POLICE DEPARTMENT,

Plaintiffs reside at
21 Dunderave Road
White Plains, New York

Defendants.

-----X

To the above named Defendant(s):

You are hereby summoned to answer the complaint in the action and to serve a copy of your answer, or, if this complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the day of service (or within 30 days after the service is complete if the summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

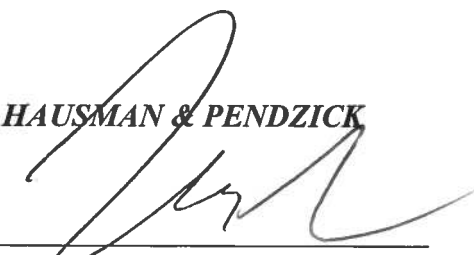
Dated: Harrison, New York
March 16, 2016

Defendants' Addresses:

The Comptroller of the City of New York
Municipal Building - Room 1225
1 Centre Street
New York, New York 10007

City of New York - Law Department
100 Church Street
New York, NY 10007

HAUSMAN & PENDZICK

By: 

JAY S. HAUSMAN
Attorney for Plaintiffs
Office and Post Office
440 Mamaroneck Avenue - Suite 408
Harrison, New York 10528
(914) 946-3344

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
DONALD ALEXANDRE and MICHELLE S.
CAMPBELL,

Index #:

Plaintiffs,

COMPLAINT

-against-

POLICE OFFICER ERIC C. MARTINEZ,
THE CITY OF NEW YORK and
NEW YORK CITY POLICE DEPARTMENT,

Defendant.

-----X

Plaintiffs by their attorneys, *HAUSMAN & PENDZICK*, complaining of the defendants,
allege the following upon information and belief:

AS AND FOR A FIRST CAUSE OF ACTION
ON BEHALF OF PLAINTIFF DONALD ALEXANDRE
FOR ASSAULT

1. That at all times hereinafter mentioned, the plaintiffs reside in the State of New York.
2. That upon information and belief and at all times hereinafter mentioned the defendant THE CITY OF NEW YORK ("CITY") was and still is a municipal corporation created, organized and existing under and by virtue of the laws of the State of New York.
3. That upon information and belief and at all times hereinafter mentioned the defendant NEW YORK CITY POLICE ("NYPD") was and still is a municipal corporation created, organized and existing under and by virtue of the laws of the State of New York.
4. That prior to the commencement of this action and on or about September 11, 2105, the plaintiffs duly filed with the "CITY" a written verified Notice of Claim pursuant to Section 50-h

of the General Municipal Law.

5. That prior to the commencement of this action and on or about September 11, 2015, the plaintiffs duly filed with the “NYPD” a written verified Notice of Claim pursuant to Section 50-h of the General Municipal Law.

6. That more than 30 days have elapsed since the presentation of said claim and the CITY has failed and neglected to make any payment of such claim and cause of action.

7. That more than 30 days have elapsed since the presentation of said claim and the NYPD has failed and neglected to make any payment of such claim and cause of action.

8. That on December 31, 2015, plaintiff, DONALD ALEXANDRE testified at a 50-H hearing pursuant to the General Municipal Law.

9. That the aforementioned 50-H hearing was conducted at the insistence of the defendant CITY.

10. That the aforementioned 50-H hearing was conducted at the insistence of the defendant NYPD.

11. This action was commenced within one (1) year and ninety (90) days after both the accrual of the causes of action alleged in this complaint and the happening of the accident complained of herein.

12. That the cause of action alleged herein arose in the County of New York, State of New York.

13. That this action falls within one or more exemptions set forth in CPLR §1602.

14. That at all times hereinafter mentioned the defendant, POLICE OFFICER ERIC C. MARTINEZ (“Officer Martinez), was employed by defendant “CITY”.

15. That at all times hereinafter mentioned the defendant, "Officer Martinez", was employed by defendant "NYPD".
16. That at all times hereinafter mentioned, and upon information and belief, the defendant, "Officer Martinez" was on duty and in the course of his employment.
17. That on August 1, 2015, plaintiff, Donald Alexandre was assaulted and battered by "Officer Martinez", an employee of defendant "CITY" and he was acting in the course of his duties and employment with defendant "CITY".
18. That on August 1, 2015, plaintiff, DONALD ALEXANDRE was assaulted and battered by "OFFICER MARTINEZ" in the course of their duties and employment with defendant "CITY".
19. That during the course of this assault and battery, plaintiff DONALD ALEXANDRE was caused to suffer and sustain severe and permanent personal injuries.
20. That at all times herein mentioned, "OFFICER MARTINEZ was acting within the scope of his employment.
21. That at all times herein mentioned, "OFFICER MARTINEZ" was acting with the knowledge and at the direction of his superiors.
22. That on August 1, 2015, plaintiff, Donald Alexandre was assaulted and battered by "Officer Martinez", an employee of defendant "NYPD" and he was acting in the course of his duties and employment with defendant "NYPD".
23. That on August 1, 2015, plaintiff, DONALD ALEXANDRE was assaulted and battered by "OFFICER MARTINEZ" in the course of their duties and employment with defendant "NYPD".
24. That during the course of this assault and battery, plaintiff DONALD ALEXANDRE was

caused to suffer and sustain severe and permanent personal injuries.

25. That at all times herein mentioned, "OFFICER MARTINEZ was acting within the scope of his employment.

26. That at all times herein mentioned, "OFFICER MARTINEZ" was acting with the knowledge and at the direction of their superiors.

27. As a result of the foregoing, plaintiff DONALD ALEXANDRE has been damaged in an amount which exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction in this matter.

AS AND FOR A SECOND CAUSE OF ACTION
ON BEHALF OF DONALD ALEXANDRE
FOR INTENTIONAL ACT WITH A NEGLIGENT RESULT

28. That at all times hereinafter mentioned, plaintiff, DONALD ALEXANDRE , reiterates and realleges each and every allegation contained in the paragraphs of this Complaint herein, as though more fully set forth herein at length.

29. That on August 1, 2015, plaintiff, Donald Alexandre was assaulted and battered by "Officer Martinez", an employee of defendant "CITY" and committed this intentional act while in the course of his duties and employment with defendant "CITY".

30. That on August 1, 2015, plaintiff, DONALD ALEXANDRE was intentionally assaulted and battered by "OFFICER MARTINEZ" in the course of his duties and employment with defendant "CITY".

31. That during the course of this intentional assault and battery, plaintiff DONALD ALEXANDRE was negligently caused to suffer and sustain severe and permanent personal injuries.

32. That at all times herein mentioned, "OFFICER MARTINEZ was acting within the scope

of his employment.

33. That at all times herein mentioned, “OFFICER MARTINEZ” was acting with the knowledge and at the direction of his superiors.

34. That on August 1, 2015, plaintiff, Donald Alexandre was intentionally assaulted and battered by “Officer Martinez”, an employee of defendant “NYPD” and he was acting in the course of his duties and employment with defendant “NYPD”.

35. That on August 1, 2015, plaintiff, DONALD ALEXANDRE was intentionally assaulted and battered by “OFFICER MARTINEZ” in the course of his duties and employment with defendant “NYPD”.

36. That during the course of this intentional assault and battery, plaintiff DONALD ALEXANDRE was negligently caused to suffer and sustain severe and permanent personal injuries.

37. That at all times herein mentioned, “OFFICER MARTINEZ was acting within the scope of his employment.

38. That at all times herein mentioned, “OFFICER MARTINEZ” was acting with the knowledge and at the direction of their superiors.

AS AND FOR A SECOND CAUSE OF ACTION
ON BEHALF OF DONALD ALEXANDRE
FOR NEGLIGENT HIRING, SUPERVISION AND RETENTION

39. That at all times hereinafter mentioned, plaintiff, DONALD ALEXANDRE , reiterates and realleges each and every allegation contained in the paragraphs of this Complaint herein, as though more fully set forth herein at length.

40. That at all times hereinafter mentioned, defendant “CITY”, by and through

its agents, servants and/or employees, was negligent, careless and reckless in the hiring and retention of Police Officers, and in particular defendant “Officer Martinez”, to perform his duties as a police officer.

41. That at all times hereinafter mentioned, defendant “NYPD”, by and through its agents, servants and/or employees, was negligent, careless and reckless in the hiring, supervision and retention of Police Officers, and in particular defendant “Officer Martinez”, to perform his duties as a police officer.

42. That at all times hereinafter mentioned, defendant “CITY”, by and through his agents, servants and/or employees, was grossly negligent, careless and reckless in the hiring, supervision and retention of Police Officers, and in particular defendant, “Officer Martinez”, to perform his duties as a police officer.

43. That at all times hereinafter mentioned, defendant “NYPD”, by and through its agents, servants and/or employees, was grossly negligent, careless and reckless in the hiring, supervision and retention of Police Officers, and in particular defendant, “Officer Martinez”, to perform his duties as a police officer.

44. That at all times hereinafter mentioned, defendant, “CITY”, by and through it’s agents, servants, and/or employees, was negligent, careless and reckless in the hiring of police officers as follows: in failing to take any and all appropriate steps to properly screen the aforesaid persons; in failing to take appropriate steps to prevent the aforementioned occurrence; in causing, allowing and/or permitting dangerous/immature/incompetent individual to be, remain and exist in a position of which they were not qualified and which put others at risk; in improperly training its employees; in failing to properly screen Police Officers to execute the duties of a police officer; in failing to properly oversee and supervise; in causing and/or suffering, allowing and

permitting dangerous/immature/incompetent individual to be, remain and exist in a position of which they were not qualified, after notice of same, all of which the defendants, by and through their agents, servants and or employees, had actual and or constructive notice thereof and in general, the defendants still failed to use that degree of care and caution warranted under all the surrounding circumstances.

45. That at all times hereinafter mentioned, defendant, "NYPD", by and through it's agents, servants, and/or employees, was negligent, careless and reckless in the hiring of police officers as follows: in failing to take any and all appropriate steps to properly screen the aforesaid persons; in failing to take appropriate steps to prevent the aforementioned occurrence; in causing, allowing and/or permitting dangerous/immature/incompetent individual to be, remain and exist in a position of which they were not qualified and which put others at risk; in improperly training its employees; in failing to properly screen Police Officers to execute the duties of a police officer; in failing to properly oversee and/or supervise; in causing and/or suffering, allowing and permitting dangerous/immature/incompetent individual to be, remain and exist in a position of which they were not qualified, after notice of same, all of which the defendants, by and through their agents, servants and or employees, had actual and or constructive notice thereof and in general, the defendants still failed to use that degree of care and caution warranted under all the surrounding circumstances.

46. That the incident and resulting injuries sustained by the plaintiff, were caused by the defendant "CITY", by and through its agents, servants and or employees, in that it is vicariously negligent, careless and reckless for the actions of "Officer Martinez" undertaken while performing his duties as a Police Officer.

47. That the incident and resulting injuries sustained by the plaintiff, were caused by

the defendant “NYPD”, by and through its agents, servants and or employees, in that it is vicariously negligent, careless and reckless for the actions of “Officer Martinez” undertaken while performing his duties as a Police Officer.

48. That by reason of the foregoing and the negligence of the said defendants, this plaintiff sustained serious, severe, and permanent injuries to his head, limbs and body, still suffers and will continue to suffer for some time, great physical and mental pain and serious bodily injury; became sick, sore, lame and disabled and so remained for a considerable length of time.

49. That by reason of the foregoing and the negligence of the said defendants, this plaintiff, DONALD ALEXANDRE, is informed and verily believes his aforesaid injuries are permanent and he will permanently suffer from the effects of his aforesaid injuries and he will be caused to suffer permanent embarrassment and continuous pain and inconvenience.

50. That by reason of the foregoing, this plaintiff, DONALD ALEXANDRE, was compelled and did necessarily require medical aid and attention and did necessarily pay and become liable therefore, for medicines and upon information and belief, the plaintiff, DONALD ALEXANDRE, will necessarily incur similar expenses in the future.

51. That by reason of the wrongful, intentional, negligent and unlawful actions of the defendants, as aforesaid, the plaintiff, DONALD ALEXANDRE, was severely injured, bruised and wounded, suffered, still suffers, and will continue to suffer for some time great physical pain and great bodily injuries and became sick, sore, lame and disabled and so remained for a considerable length of time.

52. That as a result of the defendant’s negligence as aforesaid, this plaintiff, DONALD ALEXANDRE, has been damaged in an amount which exceeds the jurisdictional

limits of all lower courts which would otherwise have jurisdiction in this matter.

AS AND FOR A FOURTH CAUSE OF ACTION
ON BEHALF OF DONALD ALEXANDRE
PURSUANT TO GML §205-e

53. At the time of the incident herein complained of, plaintiff was a police officer employed by the City of New York.

54. At the time of the incident herein complained of, plaintiff was a police officer employed by the New York City Police Department.

55. That as a result of the defendant's negligence, acts, omissions, intentional, willful or culpable conduct, violations of statute(s), negligence per se and/or reckless conduct, plaintiff was caused to be injured.

56. The defendants failed to comply with statutes, rules, ordinances, laws, orders and/or regulations of the United States; New York State, County, village, city and/or town or any of their divisions, departments and/or bureaus.

57. Pursuant to General Municipal Law § 205-E, defendants are liable to plaintiff, for plaintiff's injuries.

58. The defendants breach of duty, negligence, statutory violations, failures, errors and/or omissions were a substantial factor in causing injury to the plaintiff.

59. That is a result of the foregoing, plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts.

AS AND FOR A FIFTH CAUSE OF ACTION
ON BEHALF OF MICHELLE S. CAMPBELL

60. That at all times hereinafter mentioned, plaintiff, MICHELLE S. CAMPBELL, repeats, reiterates and realleges each and every paragraph of the within Complaint with the same force and effect as if set forth herein at length.

61. That at all times hereinafter mentioned, plaintiff, MICHELLE S. CAMPBELL was the lawful wife of the plaintiff, DONALD ALEXANDRE, and as such said plaintiff, MICHELLE S. CAMPBELL was entitled to the support, services, society and consortium of the plaintiff, DONALD ALEXANDRE.

62. By reason of the negligence afore-described of the defendants as aforesaid, their agents, servants and/or employees as aforesaid, the plaintiff was deprived of the support, services, society and consortium of the plaintiff, DONALD ALEXANDRE, and shall be forever be deprived of same.

63. As a result of the herein above, plaintiff, MICHELLE S. CAMPBELL, has expended, diverse sums of money in payment of the expenses incurred for medical care, treatment and hospitalization for plaintiff, DONALD ALEXANDRE, and will continue to expend such sums for future expenses.

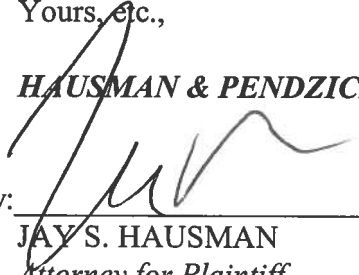
64. That by reason of the foregoing negligence afore-described on the part of the defendants, this plaintiff has been damaged in a sum which exceeds the jurisdictional limits of all lower court that would otherwise have jurisdiction of this matter.

WHEREFORE, plaintiff DONALD ALEXANDRE demands judgment against the defendants on the First, Second Third and Fourth causes of action; plaintiff, MICHELLE S. CAMPBELL demands judgment against the defendants on the fifth cause of action, all in an amount which exceeds the jurisdictions limits of all lower courts which would otherwise ave jurisdiction over this matter; together with the costs and disbursements of this action.

Dated: Harrison, New York
March 16, 2016

Yours, etc.,

HAUSMAN & PENDZICK

By: 

JAY S. HAUSMAN

Attorney for Plaintiff

440 Mamaroneck Avenue - Suite 408

Harrison, New York 10528

(914) 946-3344